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No. 30

COLLECTION

INVESTORS

Tenants and the TAL

Leases, rent increases and rights in Quebec.



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BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION INVESTORS · GUIDE NO. 30

Tenants and the TAL

Leases, rent increases and rights — manage tenants properly in Quebec

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In Quebec, the landlord-tenant relationship is governed by precise rules and by the Administrative Housing Tribunal (TAL). Knowing them means avoiding conflicts, costly mistakes and unpleasant surprises.

This guide covers the lease, tenant selection, rent increases, everyone's rights and obligations, and the role of the TAL.

Informational content, not legal advice. Each chapter ends with a lined “My Notes” page.

Becoming an owner-lessor means entering into a precise legal framework. This guide covers the lease and tenant selection, rent increases, everyone's rights and obligations, the role of the TAL and how to respond to delays and conflicts.

The common thread: good initial practices and rigorous writing avoid the majority of disputes.

CHAPTER

The lease and selection of tenants

> *Start off on solid foundations.*

The lease (often the official TAL form) governs the rental: rent, duration, conditions, regulations of the building. Careful tenant screening is your best protection against problems.

- Check references and payment history (in accordance with the law).
- Complete a clear and complete lease.
- Submit the mandatory documents and the building regulations, if applicable.

It all starts with the lease (often the official TAL form) and a rigorous selection: verification of income, references and credit file, in compliance with the law. A good, well-chosen tenant at the start is better than ten court proceedings later.

> EMILIE'S ADVICE
>
> *A good, well-chosen tenant is better than accommodation rented quickly and poorly. Take the time to select: it is your best insurance against unpaid debts and conflicts.*

CHAPTER

The rent increase

> *Increase correctly, according to the rules.*

The rent increase is regulated: it is done upon renewal of the lease, with notice within the required time frame, and the tenant has the right to refuse it. In the event of disagreement, the determination can be brought to the TAL, which applies criteria (expenses, works, etc.).

- Respect the deadlines for notice of increase.
- Justify the increase (tax increases, insurance, major works).
- Know that the tenant can refuse and that the TAL can decide.

The rent increase is regulated: it is done upon renewal of the lease, with timely notice, and the tenant can accept it, refuse it or leave. Criteria (works, taxes, insurance) guide a reasonable increase. Improvising an increase exposes you to a refusal at the TAL.

> EMILIE'S ADVICE
>
> *Never improvise an increase "by feeling". Respect the deadlines and document your justifications: this is what holds water if the file goes to the TAL.*

CHAPTER

Rights and obligations of each

> *Know the framework to avoid disputes.*

- Owner: provide accommodation in good condition, carry out necessary repairs, respect the peaceful enjoyment of the premises.
- Tenant: pay the rent on time, maintain the accommodation, respect the rules.
- Access to housing: the owner must respect notice rules to visit or carry out work.

Most conflicts arise from a lack of understanding of these rules on both sides. Knowing them saves you a lot of trouble.

Everyone has their rights and obligations: the owner provides housing in good condition and respects peaceful enjoyment; the tenant pays on time, maintains and respects the lease. Knowing this framework avoids the majority of disputes - most arise from a misunderstanding of the rules.

> EMILIE'S ADVICE
>
> *Strictly respect the rules for access to accommodation. Entering without a formal notice is a common mistake that can put you at fault, even for a good reason.*

CHAPTER

The role of NLP

> *Understand the court that decides disputes.*

The Administrative Housing Tribunal (TAL) decides disputes between owners and tenants: rent setting, non-payment, repossession of accommodation, repairs, termination of lease, etc. You file a request there, and the court makes a decision.

Properly documenting your files (leases, notices, communications, proof of payment or work) is essential if you have to contact the TAL.

The Administrative Housing Tribunal (TAL) decides disputes between landlords and tenants (unpaid rent, repossessions, repairs, increases). His decisions are binding. A documented file (lease, notice, written exchanges) is your best asset if you have to use it.

> EMILIE'S ADVICE
>
> *Document everything, all the time: leases, notices, exchanges, invoices. In NLP, the one who has the written evidence is in a much better position than the one who tells the story from memory.*

CHAPTER

Rent delays and conflicts: react well

> *Act correctly in the event of a problem.*

Even with a good selection, difficulties can arise. The key: react **early and in order** :

- Communicate **quickly** and in writing upon delay.
- Document the **exchanges** and breaches.
- Know the **recourse** and deadlines provided for by law.
- Go through the **Administrative Housing Tribunal** as needed, with a solid file.

Keeping calm, remaining factual and following procedure protects your rights as well as those of the tenant.

Faced with a delay or a conflict, react early and properly: communicate in writing from the first delay, document everything, know your recourses and their deadlines. Don't wait three months of unpaid debts: a firm but courteous written reminder resolves the majority of situations before they escalate.

> EMILIE'S ADVICE
>
> *Don't wait for three months of unpaid rent to act. A written reminder at the first delay, courteous but firm, resolves the majority of situations before they escalate.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Implement a rigorous selection procedure.
2. Use a clear and compliant lease.

Within 30 days

1. Systematically document notices, communications and invoices.
2. Inform me about the increase deadlines and access rules.

Then

1. Consult if necessary on a TAL approach, files in hand.

As lessor

1. Use the official lease and select rigorously (income, references, credit).
2. Document all exchanges and know the notice and appeal deadlines.

REFERENCES

Resources & glossary

- TAL: Administrative Housing Tribunal, decides rental disputes.
- Lease: rental contract, often the official TAL form.
- Notice of increase: notification framed by deadlines.
- Peaceful enjoyment: the tenant's right to peaceful use of the accommodation.
- Access rules: notice conditions for visiting or carrying out work.

- Lease: rental contract, often the official TAL form.
- Renewal: renewal of the lease, time of increase.
- Peaceful enjoyment: the tenant's right to peaceful use of the accommodation.
- TAL: Administrative Housing Tribunal, which decides disputes.
- Notice: written notification (increase, resumption) within specific deadlines.

GO FURTHER

Quiz - test yourself

1. In Quebec, rental disputes are resolved by:

A) The municipality

B) The Administrative Housing Tribunal (TAL)

C) The notary

D) The police

2. The best protection against problems is:

A) Rent quickly

B) Rigorous selection of tenants

C) No lease

D) High rent

3. The rent increase is done:

A) Anytime

B) Upon renewal, with timely notice

C) Without notice

D) Prohibited

4. The tenant can:

A) Always accept

B) Refuse the increase, the TAL being able to decide

C) Do nothing

D) Set the rent alone

5. The owner must in particular:

A) Ignoring repairs

B) Provide housing in good condition and respect peaceful enjoyment

C) Enter without notice

D) Increase by feeling

6. To visit or carry out work, the owner must:

A) Enter freely

B) Respect notice rules

C) Notify the city

D) Nothing

7. In front of the TAL, the major advantage is:

A) Memory

B) Well-documented files

C) The charm

D) Chance

8. Conflicts often arise:

A) A good lease

B) A lack of knowledge of the rules on both sides

C) Too much documentation

D) You're welcome

Answers

1. B - The TAL is the competent court (chap. 4).

2. B - A good, well-chosen tenant (chap. 1).

3. B - Framed by deadlines (chap. 2).

4. B - Refusal is possible (chap. 2).

5. B - Basic obligations (chap. 3).

6. B - Access rules to respect (chap. 3).

7. B - Written evidence takes precedence (chap. 4).

8. B - Knowing the framework avoids trouble (chap. 3).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

Emilie Cauvier

RESIDENTIAL & COMMERCIAL
REAL ESTATE BROKER

(514) 774-9818

emilie@equipecauvier.com

guidesimmoquebec.com